MAXWELL CASPAR HOLYGHOST
versus
MOFFAT SEFU
and
STENFORD NYAMANDE
and
THE MINISTER OF LANDS, AGRICULTURE, FISHERIES AND RURAL DEVELOPMENT N.O
and
THE SURVEYOY GENERAL N.O

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE 5 and 9 March 2026

Urgent Chamber Application for a mandatory interdict

N. Z. musuku, for the applicant
T. Chamutsa, for 1st and 2nd respondents
T. Manganda, for the 3rd and 4th respondents

MAMBARA J:

INTRODUCTION

[1] This is an urgent chamber application in which the applicant seeks, in substance, a protective order to stop administrative and cadastral steps that may render a boundary dispute irreversible, and final relief compelling a land survey that must accord with (and not undermine) the prior fact-finding of the Land Commission. At the hearing of the matter and with the agreement of the parties the issue of urgency was dispensed with on the basis that the matter took long to be set down because the judge who was first assigned to deal with the matter recused herself and the matter took some time before being referred to me.

The applicant seeks a provisional order couched as follows;

TERMS OF FINAL ORDER SOUGHT

1. *That the approval, registration or finalization by the 4th respondent of the survey diagram prepared pursuant to the survey conducted on 4 Febriary 2026 in respect of*

Subdivision 10 of Mucherengi East, Makonde District and the adjoining subdivisions be and is hereby set aside.

2. *That the 3rd responded be and is hereby interdicted from issuing any title deeds arising from or based upon the said survey diagram pending the lawful and final determination of the boundary dispute between the applicant and the 1st and 2nd respondents in accordance with the directive previously issued by the 3rd respondent.*
3. *That the 4th respondent be directed to implement the directive of the 3rd respondent requiring a ground survey to be conducted in collaboration with the Zimbabwe Land Commission for purposes of conclusively determining and demarcating the correct boundaries of Subdivision 10 of Mucherengi East.*
4. *That the 1st and 2nd respondents shall pay costs of this application jointly and severally, the one paying the other to be absolved.*

INTERIM RELIF GRANTED

Pending determination of this matter, the applicant is granted the following relief;

1. *That the 4th respondent be and is hereby ordered to suspend and refrain from approving, registering of finalising the survey diagram prepared pursuant to the survey conducted on 4 February 2026 in respect of Subdivison 10 of Mucherengi East, Makonde District and the adjoining subdivisions.*
2. *In the event that such approval has already been granted, the the 3rd respondent be and is hereby interdicted from issuing or approving the issuance of ant title deeds arising from or based upon the said survey diagram.*
3. *That the status quo obtaining prior to the survey of 4 February 2026 shall be maintained pending the return date.*
4. *That costs shall be costs in the cause*

SERVICE OF THE PROVISIONAL ORDER

This provisional order shall be served upon the respondents by the applicant's legal practitioners.

Background and material facts

[3] The applicant is a lawful occupier of an agricultural subdivision held under an offer letter/permit regime. He asserts that he was shown boundaries upon allocation and developed and farmed within those boundaries.

[4] A boundary dispute is said to have arisen around 2017 between the applicant and neighbouring subdivision holders/occupiers. The dispute is described as one of encroachment: the applicant alleges that a neighbouring respondent's centre pivot irrigation and crop extended into his subdivision.

[5] The dispute was taken to the Land Commission, which conducted a boundary identification exercise in the presence of the disputants. The Commission's written determination (LCD/385/2017) records, among other things:

(a) that a field visit and boundary identification exercise occurred on 3 August 2022;

(b) that pegs were established between the two subdivisions;

(c) that a boundary coordinate point was recorded in UTM format (illustratively: "Point 1… 210567,8130715");

(d) that part of a respondent's irrigation system and wheat crop were in the complainant's subdivision; and

(e) that "both parties should adhere" to the boundary shown on 03/08/2022 "waiting for a survey."

[6] The Commission's position, even as recorded by the respondents, is that the Commission visited first (3 August 2022) before later litigation steps; this chronology is not determinative, but it demonstrates that the dispute and the need for a formal survey have been live for years.

[7] There is evidence of prior court involvement by consent: A High Court order by CHINAMHORA J interdicted mutual encroachment/cultivation on specified subdivisions pending determination of the boundary dispute by the Land Commission and ordered the Commission to expedite resolution.

[8] The Minister responsible for lands later addressed the dispute and stated that the dispute "is centered on boundary question" and "can only be resolved" if referred to the Surveyor-General for boundary clarification; the Minister then directed that the Surveyor-General "proffer its services and collaborate with the Zimbabwe Land Commission" to ensure the boundary dispute is "permanently resolved."

[9] The respondents placed before court a written instruction from the Surveyor-General's department to a private land surveyor to undertake "survey of lots 1–31" of the farm, with detailed requirements including that the surveyor "liaise closely" with relevant offices and specifically with the Land Development and Administration office and the Land Commission

"in relation to any pegging or servitude," beacons to be placed per the 1979 regulations, and beacons to be pointed out to the District Lands Officer.

[11] The respondents dispute urgency and the applicant's characterisation of the survey. Their position, put shortly, is that surveyors came to the farm on 20 January 2026 to survey the whole farm (lots 1–31) and that they were still surveying when papers were filed; they say plot holders had not yet been shown boundaries and no diagrams had yet been prepared.

[12] Even on the respondents' stance, the existence of active surveying on the farm underscores that administrative approval steps are imminent and that physical boundary outcomes are being set in motion. Whether the survey is "completed" or "in progress" does not, in my view, eliminate the risk of irreversible prejudice once diagrams are approved and used as the basis for registrable title.

Issues for determination

[13] The questions that arise are these:

[15] Does this Court have the power (and should it exercise it) to grant prohibitory and mandatory relief against public functionaries and private respondents so as to preserve the status quo and compel a lawful survey process?

[16] What is the legal status and practical weight of the Land Commission's dispute findings, and may this Court direct that the Survey be conducted so as to follow closely those findings?

[17] What order is just, effective, and consistent with the land registration system—particularly the role of approved diagrams in deeds registration?

Jurisdiction and governing legal framework

[23] This Court's jurisdiction is broad. The Constitution, in s171(1)(a), provides that the High Court "has original jurisdiction over all civil… matters throughout Zimbabwe."

The Constitution in s176 also further affirms that the High Court has inherent power "to protect and regulate [its] own process… taking into account the interests of justice."

[24] Courts' orders bind the State and all governmental institutions and agencies to which they apply, and must be obeyed.

These provisions are not decorative; they are the constitutional scaffolding for effective remedies where administrative actors are integral to the dispute.

[25] The Land Commission is a constitutional commission with articulated functions. Section 297(1)(d) assigns it the function "to investigate and determine complaints and disputes" relating to "administration and allocation of agricultural land."

[26] Section 297(5) further commands that State institutions "must assist" the Commission in carrying out its functions and must protect its independence and effectiveness.

This obligation is echoed in the Land Commission Act's scheme for dispute settlement, which provides that in determining disputes the Commission "shall be bound by the rules of natural justice."

[27] The right to lawful, prompt, efficient and procedurally fair administrative conduct is constitutionally protected in s68(1) of the Constitution of Zimbabwe.

Where multiple agencies (Ministry, Land Commission, Surveyor-General) are engaged in a boundary process, the administrative justice guarantee supplies a lens for assessing whether the process is coherent, fair and not arbitrary.

[28] The Land Survey Act [*Chapter 20:12*] in s7(1) supplies the technical-legal machinery for surveys used for deeds registration and for boundary/beacon disputes. It is binding on the State.

The Surveyor-General's statutory duties include supervising and controlling survey and charting of land "for purposes of registration in the Deeds Registry," and examining and approving plans and diagrams where satisfied as to accuracy and compliance.

[29] Most importantly for present purposes, section 18(3) of the Land Survey Act provides that the Surveyor-General "may, unless otherwise directed by an order of the court, refuse to approve a diagram" where he reasonably believes non-owned area has been included within boundaries defined in the diagram.

[30] The Act also contemplates that boundary disputes may culminate in a "judgment of the Court" or an award, and then title deeds must be endorsed/rectified based on a diagram correctly representing the boundaries "as determined."

That provision demonstrates that the law anticipates the Court's role in ensuring diagrams and title reflect correct boundaries.

Principles for mandatory and prohibitory relief

[31] The applicant seeks relief that is both prohibitory (stop approvals/issuance) and mandatory (compel a survey process). This is not unusual in urgent matters where administrative steps threaten irreversibility.

[32] The requirements for a mandamus or mandatory interdict are well settled in our law. In *Tribac (Pvt) Ltd* v *Tobacco Marketing Board* 1996 (2) ZLR 52 (S), as cited and set out in *Hodza* v *Steward Bank Ltd* HH 50-17, the requisites include: a clear right; injury actually committed or reasonably apprehended; and absence of similar protection by another ordinary remedy.

[33] Where the right is threatened by an administrative/cadastral state change (approval of a diagram and the issuance of title), the "absence of alternative remedy" is often satisfied because ordinary relief later may be practically hollow, particularly where third-party reliance and administrative finality steps intervene.

Analysis

[34] The applicant's claim is not that this Court should itself carry out a technical survey. The applicant asks that the lawful statutory actor—the Surveyor-General—be directed to do what statute and ministerial directive already envisage: supervise and control a survey for deeds-registration purposes, in collaboration with the Land Commission which has already determined the dispute facts on the ground.

[35] The constitutional allocation of functions matters. The Land Commission's constitutional mandate includes investigating and determining such disputes.

The Land Commission Act gives operational content: The Commission has jurisdiction to determine disputes and must do so observing natural justice.

[36] In this matter, the Commission did not merely opine. It conducted a boundary identification exercise in the presence of both parties, established pegs, recorded at least one coordinate point, and made a resolution that parties adhere to the boundary pending survey.

[37] The Minister's directive is consistent with that constitutional structure: it directs that the Surveyor-General collaborate with the Land Commission for permanent resolution. There is no basis, on the papers, to treat the directive as spent or irrelevant.

[38] The respondents' opposition papers, far from undermining the applicant's case, confirm key structural facts: (a) that the Surveyor-General issued formal instructions for the survey of the entire farm and (b) that those instructions explicitly require close liaison with the Land Commission in relation to pegging or servitudes.

[39] The real dispute is therefore one of fidelity: whether the survey being conducted (whether under a "title deeds programme" or otherwise) is being carried out in a manner that gives effect to the Commission's boundary identification, or whether it is being used to bypass that process and effectively allocate the disputed strip to someone else.

[40] In resolving that dispute, I emphasise that the Court is not substituting itself for the Surveyor-General nor for the Land Commission. Rather, the Court ensures that the statutory and constitutional actors do their work coherently and lawfully. This is a classic use of judicial power in a constitutional democracy: to ensure lawful administrative conduct and to protect rights threatened by unlawful or irrational process.

[41] The risk of irreversible prejudice is concrete. The Deeds Registries Act scheme makes the diagram foundational: the land described in the diagram annexed to title is what is included in the deed.

Approval of a diagram inconsistent with the Commission's pegging would tend to "lock in" the disputed boundary for purposes of title, at least practically, and would generate downstream conflict and possible rectification litigation.

[42] In those circumstances, interim restraint is warranted to prevent the "day of reckoning" from arriving before the lawful dispute-resolution path is completed.

[43] As to whether I may direct the Surveyor-General regarding approval/refusal of diagrams: section 18(3) of the Land Survey Act is explicit that refusal may be made "unless otherwise directed by an order of the court."

The Act therefore contemplates judicial direction at the approval stage where justice so requires.

[45] Following closely the findings of the Land Commission" in the present context, means that the survey must (a) take as its primary factual premise the boundary pegs and identification done by the Land Commission on 3 August 2022, and (b) translate that factual premise into a formal survey tied to the trigonometrical system, with appropriate beacons and diagrams, as required by survey law and practice.

[46] It does not mean that the Surveyor-General is compelled to accept an error of measurement or a non-compliant plan. If, and only if, a technically unavoidable inconsistency arises between (i) the Commission's pegging and recorded coordinates and (ii) what is possible under the Land Survey Act's accuracy and control-point requirements, the Surveyor-General must record reasons, notify the Land Commission and affected parties, and take the legally sanctioned dispute-resolution route (arbitration/court determination) rather than unilaterally reallocating the disputed strip.

[47] This approach respects both the Commission's constitutional fact-finding role and the Surveyor-General's statutory technical gatekeeping role.

[48] Applying the mandatory interdict requirements, *Triba*c as quoted in *Hodza supra,* the applicant shows at least a clear right to have administrative action affecting his land interest be lawful and procedurally fair, and to have boundaries determined consistently with the Commission process and the Minister's directive.

[49] The apprehended injury is not speculative: approval of a disputed diagram and title issuance are precisely the sort of administrative steps that can create irreversible prejudice or, at minimum, a costly rectification cycle.

[50] Finally, an "ordinary remedy" is not adequate in the circumstances. Waiting for the ordinary roll, after title issuance processes have advanced, is precisely what urgency doctrine warns against where later relief may be academic.

Remedy and order

In the circumstances the application succeeds and the interim relief prayed for is granted.

MAMBARA J……..

MawereSibanda Commecial Lawyers, applicant's legal practitioners
Chamutsa And Partnres, 1st and 2nd respondents' legal practitioners
Civil Division, 3rd and 4th respondents' legal practitioners